

Funderstone Securities Limited
Funderstone Futures Limited
Funderstone Asset Management (HK) Limited

ACCOUNT OPENING FORM – INDIVIDUAL PROFESSIONAL INVESTOR
開戶表格 – 個人專業投資者

A. ACCOUNT TYPE 賬戶類別	
A1. Individual/Joint Account 個人/聯名賬戶	
☐ Individual Account 個人賬戶	☐ Joint Account 聯名賬戶 (Please fill in 2 sets of account opening documents separately 請各自填寫一份開戶表格)
A2. Account Type(s) 賬戶類別	
☐ Securities Account (Cash Account) 現金證券賬戶	☐ Securities Account (Margin Account) 保證金證券賬戶
☐ Futures Account 期貨賬戶	
A3. Currency 貨幣	
☐ Hong Kong Dollars 港元	☐ United States Dollars 美元 ☐ Renminbi 人民幣
A4. Trading Platform 交易平台	
Would you like to apply for the Internet Trading Service? 閣下(等)需要申請互聯網交易服務嗎? ☐ Yes 是 ☐ No 否	

B. CLIENT INFORMATION 客戶資料		
B1. Name of *Sole/Primary/Joint Applicant *獨名/主要/聯名申請人名稱		
*Please delete as appropriate 請刪去不適用者		
Personal Information 個人信息		
Salutation 稱謂	☐ Mr. 先生 ☐ Miss 小姐 ☐ Ms. 女士 ☐ Mrs. 太太	
Gender 性別	☐ Male 男 ☐ Female 女	
Chinese Name 中文姓名	Surname 姓氏	First Name 名字
English Name 英文姓名	Surname 姓氏	First Name 名字
Former Name (If applicable) 曾用名 (如適用)	Surname 姓氏	First Name 名字

(Funderstone Securities Limited, Funderstone Futures Limited and Funderstone Asset Management (HK) Limited are collectively referred to as "Funderstone Group".)
(Funderstone Securities Limited、Funderstone Futures Limited 及 Funderstone Asset Management (HK) Limited 統稱為「Funderstone 集團」。)

Funderstone Securities Limited (CE No. AAK018) is currently licensed to engage in the following regulated activities: Type 1 (dealing in securities), Type 4 (advising on securities), Type 6 (advising on corporate finance) and Type 9 (asset management) under the Securities and Futures Ordinance (Cap. 571 of the Laws of Hong Kong) ("SFO").

Funderstone Securities Limited (中央編號: AAK018) 現時獲許可從事《證券及期貨條例》(香港法例第571章) (「《證券及期貨條例》」) 項下的以下受規管活動: 第1類(證券交易)、第4類(就證券提供意見)、第6類(就機構融資提供意見)及第9類(提供資產管理)。

Funderstone Futures Limited (CE No. AAD847) is currently licensed to engage in the following regulated activities: Type 2 (dealing in future contracts), Type 5 (advising on futures contracts) and Type 9 (asset management) under the SFO.

Funderstone Futures Limited (中央編號: AAD847) 現時獲許可從事《證券及期貨條例》項下的以下受規管活動: 第2類(期貨合約交易)、第5類(就期貨合約提供意見)及第9類(提供資產管理)。

Funderstone Asset Management (HK) Limited (CE No. ACD757) is currently licensed to engage in Type 9 regulated activity (asset management) under the SFO.

Funderstone Asset Management (HK) Limited (中央編號: ACD757) 現時獲許可從事《證券及期貨條例》項下的第9類受規管活動(提供資產管理)。

B. CLIENT INFORMATION 客戶資料				
B2. Information of *Sole/Primary/Joint Applicant *獨名/主要/聯名申請人資料				
<i>*Please delete as appropriate 請刪去不適用者</i>				
Identification Document 身份證明 <i>*For non-permanent HK resident, please provide passport.</i> 非香港永久居民之申請人應提交護照。	Type of Identification Document and Identification Document No. 證件種類 及 證件號碼		Expiry Date (if applicable): 有效期至(如適用)	Country/Place of Issue: 簽發國家/地區
	☐ Identity Card 身份證*			
	☐ Passport 護照			
	☐ Others (please specify: 其他 (請註明: _____)			
Nationality 國籍 <i>*Please state all of the nationalities if the applicant has more than one nationality.</i> 擁有多重國籍之申請人應註明其所有國籍		Date of Birth 出生日期 _____ / _____ / _____ DD 日 MM 月 YYYY 年		
Country/Place of Birth 出生國家/地區		Country/Place of Residence 居住國家/地區		
Residential Address 居住地址 _____ <i>* PO Box is not acceptable 請勿填寫郵政信箱</i>			Country (Postal Code) 國家 (郵政編碼)	
Correspondence Address (Please select one only) 通訊地址 (只選一項) ☐ Same as Residential Address 與居住地址相同 ☐ Address as specified below 如下指定地址: _____ <i>* PO Box is not acceptable 請勿填寫郵政信箱</i>			Country (Postal Code) 國家 (郵政編碼)	
E-mail Address 電郵地址: _____				
Correspondence, trading confirmations and statements to be sent to my: 通訊、交易確認及結單請寄住本人的 ☐ Residential Address 居住地址 ☐ Correspondence Address 通訊地址 ☐ Email Address 電郵地址				
Contact Details 聯絡資料	Mobile No. 手提電話	(Country Code 國家區碼) ()	Office No. 辦公室電話	(Country Code 國家區碼) ()
	Home No. 住宅電話	(Country Code 國家區碼) ()	Fax No. 傳真號碼	(Country Code 國家區碼) ()
Marital Status 婚姻狀況	☐ Single 單身 ☐ Married 已婚 ☐ Divorced/Separated 離婚/分居 ☐ Widowed 喪偶			
Education Level 教育程度	☐ Primary School or below 小學或以下 ☐ Secondary/High School 中學/高中 ☐ Matriculation or Post-secondary 大專或預科 ☐ University or above 大學或以上 ☐ Others (please specify) 其他 (請註明): _____			
Personal Annual Income from All Sources (HKD) 個人年總收入(港幣)	☐ ≤\$200,000 不多於二十萬港元 ☐ ≤\$500,000 不多於五十萬港元 ☐ ≤\$1,000,000 不多於一百萬港元 ☐ ≤\$5,000,000 不多於五百萬港元 ☐ ≤\$8,000,000 不多於八百萬港元 ☐ >\$8,000,000 多於八百萬港元		Total Liquid Net Worth (HKD) 總淨流動資產(港幣)	☐ ≤\$200,000 不多於二十萬港元 ☐ ≤\$500,000 不多於五十萬港元 ☐ ≤\$1,000,000 不多於一百萬港元 ☐ ≤\$5,000,000 不多於五百萬港元 ☐ ≤\$8,000,000 不多於八百萬港元 ☐ >\$8,000,000 多於八百萬港元

Employment Information 工作狀況			
Employment Status 工作現況	☐ Self-employed 自僱 ☐ Merchant 商號東主 ☐ Full-time employee 全職僱員 ☐ Part-time/Temporary/Contract employee 兼職/臨時/合約僱員 ☐ Not Currently Employed/Unemployed 非在職/失業 ☐ Student 學生 ☐ Housewife 家庭主婦 ☐ Retired 退休人士 ☐ Others (please specify) 其他 (請註明): _____	Name of Current Employer (If applicable) 現任僱主名稱(如適用)	Chinese 中文 English 英文
		Current Job Title (If applicable) 現任職位(如適用)	
		Years of Employment with Current Employer (If applicable) 現職公司工作年數(如適用)	
Nature of Business 業務性質		Occupation 職業	
Office Address 公司地址			Country (Postal Code) 國家 (郵政編碼)
Monthly Salary (HKD) 每月薪金(港幣)	☐ ≤\$10,000 不多於一萬港元 ☐ ≤\$80,000 不多於八萬港元 ☐ ≤\$20,000 不多於二萬港元 ☐ ≤\$120,000 不多於十二萬港元 ☐ ≤\$50,000 不多於五萬港元 ☐ ≤\$200,000 不多於二十萬港元 ☐ >\$200,000 多於二十萬港元		
資金來源 Source of Funds			
Initial Source of Funds 首次資金來源	<u>Origin 來源</u> ☐ Payroll/Commission/Pension 薪金/佣金/退休金 ☐ Individual Business 個人業務 ☐ Savings 儲蓄 ☐ Inheritance/Gift 繼承/饋贈 ☐ Investment Return 投資收益 ☐ Sales Proceeds of Property/other assets 售出物業/其他資產所得 ☐ Others (please specify) 其他(請註明): _____ <i>*Tick more than one box, if appropriate 如有需要, 可勾選多於一項</i>		
	<u>Place of Source of Funds 資金來源地</u> ☐ Hong Kong 香港 ☐ China 中國 ☐ Other location(s) 其他地區: _____ <i>*Tick more than one box, if appropriate 如有需要, 可勾選多於一項</i>		
	<u>The means by which you will deposit money into the Account(s) 閣下打算匯款至戶口的方式</u> ☐ Telegraphic Transfer 電匯 ☐ Cheque 支票 ☐ Demand Draft 匯票 ☐ Others (please specify) 其他(請註明): _____ <i>*Tick more than one box, if appropriate 如有需要, 可勾選多於一項</i> <i>*Third party cheques will not be accepted 第三方支票將不獲接納</i>		
Recurring Source of Funds 持續資金來源	<u>Origin 來源</u> ☐ Payroll/Commission/Pension 薪金/佣金/退休金 ☐ Individual Business 個人業務 ☐ Savings 儲蓄 ☐ Inheritance/Gift 繼承/饋贈 ☐ Investment Return 投資收益 ☐ Sales Proceeds of Property/other assets 售出物業/其他資產所得 ☐ Others (please specify) 其他(請註明): _____ <i>*Tick more than one box, if appropriate 如有需要, 可勾選多於一項</i>		
	<u>Place of Source of Funds 資金來源地</u> ☐ Hong Kong 香港 ☐ China 中國		

☐ Other location(s) 其他地區: _____ <i>*Tick more than one box, if appropriate 如有需要, 可勾選多於一項</i>
The means by which you will deposit money into the Account(s) 閣下打算匯款至戶口的方式 ☐ Telegraphic Transfer 電匯 ☐ Cheque 支票 ☐ Demand Draft 匯票 ☐ Others (please specify) 其他(請註明): _____ <i>*Tick more than one box, if appropriate 如有需要, 可勾選多於一項</i> <i>*Third party cheques will not be accepted 第三方支票將不獲接納</i>

C. SETTLEMENT ACCOUNT INFORMATION 結算賬戶資料

The following bank account is the Settlement Account under and within the meaning of the "Terms and Conditions for Trading Account" and for the relevant settlement arrangements. I/We hereby instruct and authorise Funderstone Group to deposit all payments payable to me/us into the following bank account. Funderstone Group shall not be held liable for any loss, expenses or damages suffered by me/us as a result of any delay in depositing such payments caused by any reason whatsoever.

以下的銀行賬戶是《交易賬戶條款及條件》中定義的結算賬戶, 並作有關之結算安排。本人(等)謹此指示及授權 Funderstone 集團將所有應付本人(等)之款項存入下列之銀行賬戶。Funderstone 集團不會就任何原因延遲存入款項令本人(等)蒙受任何虧損、開支或賠償承擔任何法律責任。

Currency 貨幣	Name of Bank 銀行名稱	Account No. 賬戶號碼	Name of Account Holder 賬戶持有人名稱
HKD 港幣	_____	_____	_____
USD 美元	_____	_____	_____
CNY 人民幣	_____	_____	_____
Others (please specify) 其他 (請註明):	_____	_____	_____

D. PROFESSIONAL INVESTOR ASSESSMENT – PORTFOLIO ADEQUACY TEST 專業投資者評估 - 資產充足度測試

(For definition of Professional Investor, please refer to the definition of Professional Investor stated in paragraph (b) under section 3 of the Securities and Futures (Professional Investor) Rules (Cap. 571D of the Laws of Hong Kong) ("PI Rules"). A summary of the definition of Professional Investor is provided in **Annexure 1** of this Account Opening Form for reference only.)

(有關專業投資者的定義, 請參考《證券及期貨(專業投資者)規則》(香港法例第571D章)(「《專業投資者規則》」)第3條(b)段。開戶表格**附件1**之專業投資者定義內容摘要只供參考。)

(Please provide certified copies of the relevant supporting documents (as certified by any other licensed or registered person, an affiliate of a licensed or registered person, a JP (Justice of the Peace), or a professional person such as a branch manager of a bank, certified public accountant, lawyer, notary public or chartered secretary).) (請提交經由其他持牌人或註冊人、持牌人或註冊人的聯繫人士、太平紳士或專業人士例如銀行分行經理、執業會計師、律師、公證人或特許秘書加以驗證核證的相關證明文件。)

(Please **tick** the box(es) as appropriate) (請在適當方格內劃上「✓」號)

Criteria 準則	Supporting Document(s) 證明文件
Being an individual having a Portfolio of not less than HKD8 million or its equivalent in any foreign currency, when any one or more of the following are taken into account— 在考慮以下任何一項或多於一項時, 個人擁有的投資組合不少於港幣800萬元或等值外幣的個人— ☐ (a) a Portfolio on the individual's own account; 該個人本人的賬戶內的投資組合; ☐ (b) a Portfolio on a joint account with the individual's Associate; 該個人聯同其有聯繫者於某聯權共有賬戶內的投資組合; ☐ (c) the individual's share of a Portfolio on a joint account with one or more persons other than the individual's Associate*; 該個人在聯同一名或多於一名其有聯繫者以外的人士於某聯權共有賬戶內的投資組合中所佔部分*;	☐ a statement of account or a certificate issued by a Custodian within 12 months 由保管人在12個月內發出的賬戶結單或證明書 ☐ a certificate issued by an auditor or a certified public accountant within 12 months 由核數師或會計師在12個月內發出的證明書 ☐ a Public Filing submitted by or on behalf of the individual (either alone or with the Associate) within 12 months 由或代表該個人(不論是單獨或聯同有關有聯繫者)在12個月內呈交的公開檔案 Others (please specify):

☐ (d) a Portfolio of a corporation which, at the relevant date, has as its principal business the holding of investments and is wholly owned by the individual. 主要業務是持有投資項目並在有關日期由該個人全資擁有的法團的投資組合。 <i>*For the purpose of (c) above, an individual's share of a Portfolio on a joint account with one or more persons other than the individual's Associate is—</i> (i) the individual's share of the Portfolio as specified in a written agreement among the account holders; or (ii) in the absence of an agreement referred to in paragraph (i), an equal share of the Portfolio. 就以上(c)項而言, 某名個人在聯同一名或多於一名其有聯繫者以外的人士於某聯權共有賬戶內的投資組合中所佔部分— (i) 為賬戶持有人之間訂立的書面協議中指明, 該個人於該投資組合中所佔部分; 或 (ii) (如沒有訂立以上(i)段所述的協議) 為該投資組合中平均所佔部分。	☐ 其他 (請註明): _____
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Capitalized terms in the above table shall have the following meanings:
 上表中採用的大寫詞彙具有以下涵義:

Associate means, in relation to an individual, means the spouse or any child of the individual.
有聯繫者指就任何個人而言, 指該人的配偶或任何子女。

Portfolio means a portfolio comprising any of the following:
投資組合指由任何以下項目所組成的投資組合:

- (a) securities;
證券;
- (b) a certificate of deposit (e.g. bank monthly statement) issued by (i) an authorised financial institution; or (ii) a bank which is not an authorised financial institution but is regulated under the law of any place outside Hong Kong; or
由(i)認可財務機構發出的存款憑證 (例如: 銀行月結單); 或(ii)並非認可財務機構但根據香港以外地方的法律受規管的銀行發行的存款憑證; 或
- (c) in relation to an individual, corporation or partnership, money held by a custodian for the individual, corporation or partnership.
就任何個人、法團或合夥而言, 由保管人替該個人、法團或合夥持有的款項。

Custodian means:

- 保管人**指
- (a) a corporation the principal business of which is to act as a custodian of securities or other property for another person, whether on trust or by contract; or
主要業務是作為另一人的證券或其他財產的保管人(不論是以信託或合約形式保管)的法團; 或
 - (b) any of the following persons whose business includes acting as a custodian of securities or other property for another person, whether on trust or by contract—
業務包括作為另一人的證券或其他財產的保管人(不論是以信託或合約形式保管)的下列人士—
 - (i) an authorised financial institution;
認可財務機構;
 - (ii) a bank which is not an authorised financial institution but is regulated under the law of any place outside Hong Kong;
並非認可財務機構但根據香港以外地方的法律受規管的銀行;
 - (iii) a corporation licensed by Securities and Futures Commission of Hong Kong ("SFC") under the SFO; or
獲香港證券及期貨事務監察委員會 (「證監會」) 按照《證券及期貨條例》批給牌照的法團; 或
 - (iv) a person carrying on the business of the provision of investment services and regulated under the law of any place outside Hong Kong.
經營提供投資服務的業務並根據香港以外地方的法律受規管的人。

Public Filing means a document that, pursuant to the legal or regulatory requirements in Hong Kong or in a place outside Hong Kong, has been submitted to a person or body that is under a duty to publish the document to, or otherwise make the document available for inspection by, members of the public in Hong Kong or in a place outside Hong Kong, by or on behalf of (a) a trust corporation (whether on its own behalf or in respect of a trust of which it acts as a trustee), (b) an individual, (c) a corporation (other than a Trust Corporation) or (d) a partnership.

公開檔案指由或代表(a)信託法團(不論是代表其本身或就其擔任信託人的任何信託)、(b)個人、(c)法團(信託法團除外)、或(d)合夥依據香港或香港以外地方的法律規定或規管性規定而呈交給某人士或團體的文件, 而該人士或團體有責任向香港或香港以外地方的公眾發表該文件, 或以其他方式提供該文件予有關的公眾查閱。

E. INVESTMENT OBJECTIVE & EXPERIENCE 投資目標及經驗

1. What is your main objective of investment?

閣下(等)的主要投資目標是什麼?

- ☐ Yield Enhancement 提高收益率
- ☐ Long Term Gain 長線增值
- ☐ Speculative Gain 投機增值

2. Which of the following do you think best describe your investment attitude?

下列那一項最能夠形容閣下(等)的投資意向?

- ☐ In general, I/we can bear price fluctuation of maximum 10% of my/our investment in exchange for potential gain, which is slightly higher than the rate of bank deposits. 一般而言, 本人(等)能承受投資上最高 10% 的價格上落波動以獲得稍微高於銀行存款利率的潛在回報
- ☐ In general, I/we can bear price fluctuation of around 30% of my/our investment in exchange for potential gain, which is much better than the rate of bank deposits. 一般而言, 本人(等)能承受投資上最高 30% 的價格上落波動以獲得明顯高於銀行存款利率的潛在回報。
- ☐ In general, I/we can bear price fluctuation of around 50% of my/our investment in exchange for potential gain, which is comparable to the stock market indexes. 一般而言, 本人(等)能承受投資上最高 50% 的價格上落波動以獲得相比於股票市場指數的潛在回報。
- ☐ In general, I/we can bear any price fluctuation of my/our investment in exchange for potential gain, which is remarkably higher than the stock market indexes. 一般而言, 本人(等)能承受投資上任何的價格上落波動以獲得明顯高於股票市場指數的潛在回報。

3. What is your investment experience in the following products?
 閣下(等)在下列投資產品有多少投資經驗?

Investment Experience 投資經驗				
	Investment Products 投資產品	Trading Volume in the last 12 months (HKD) 過去 12 個月內的交易金額 (港幣)	No. of Transaction(s) in the last 12 months 過去 12 個月內的交易次數 *A sale and purchase of the same product shall be counted as one transaction. *一買一賣計算為一次交易。	Years of Experience 投資年期
☐	(a) Stocks 股票	☐ less than HKD100,000 少於港幣 10 萬元 ☐ more than HKD100,000 多於港幣 10 萬元	☐ less than 40 少於 40 宗 ☐ more than 40 多於 40 宗	☐ less than 2 years 少於 2 年 ☐ more than 2 years 多於 2 年
☐	(b) Fixed Income Products (e.g. Bonds, Convertible Bonds, etc.) / Foreign Currency Deposit 定息投資產品 (例如債券、可換股債券等) / 外幣存款	☐ less than HKD100,000 少於港幣 10 萬元 ☐ more than HKD100,000 多於港幣 10 萬元	☐ less than 40 少於 40 宗 ☐ more than 40 多於 40 宗	☐ less than 2 years 少於 2 年 ☐ more than 2 years 多於 2 年
☐	(c) Mutual Funds / Unit Trusts 共同基金 / 單位信託基金	☐ less than HKD100,000 少於港幣 10 萬元 ☐ more than HKD100,000 多於港幣 10 萬元	☐ less than 40 少於 40 宗 ☐ more than 40 多於 40 宗	☐ less than 2 years 少於 2 年 ☐ more than 2 years 多於 2 年
☐	(d) Derivatives and Leverage Products (e.g. Futures, Options, Warrants, Callable Bull/Bear Contracts, Accumulator, Margin Trading, etc.) 衍生工具/槓桿產品 (例如期貨、期權、認股權證/窩輪、可贖回牛/熊證、累計期權、保證金交易等)	☐ less than HKD100,000 少於港幣 10 萬元 ☐ more than HKD100,000 多於港幣 10 萬元	☐ less than 40 少於 40 宗 ☐ more than 40 多於 40 宗	☐ less than 2 years 少於 2 年 ☐ more than 2 years 多於 2 年
☐	(e) Structured Products (e.g. Equity-Linked Deposit / Notes, Currency-Linked Deposit, etc.) 結構化產品 (例如股票掛鉤存款/票據、貨幣掛鉤存款等)	☐ less than HKD100,000 少於港幣 10 萬元 ☐ more than HKD100,000 多於港幣 10 萬元	☐ less than 40 少於 40 宗 ☐ more than 40 多於 40 宗	☐ less than 2 years 少於 2 年 ☐ more than 2 years 多於 2 年

☐	(f) Others (please specify) 其他 (請註明): _____ _____ _____	☐ less than HKD100,000 少於港幣 10 萬元 ☐ more than HKD100,000 多於港幣 10 萬元	☐ less than 40 少於 40 宗 ☐ more than 40 多於 40 宗	☐ less than 2 years 少於 2 年 ☐ more than 2 years 多於 2 年
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Knowledge of Derivative Products 對衍生產品的認識

1. Have you ever undergone training or attended courses on derivative products?

閣下(等)曾否接受有關衍生產品的培訓或修讀相關課程?

☐ Yes 有 ☐ No 否

If applicable, please specify the name(s) of the training, course(s) or professional license(s) and the name(s) of the relevant personnel
 如適用，請註明培訓、課程或相關專業牌照名稱及持有人名稱：

2. Do you have current or previous work experience related to derivative products?

閣下(等)現時或過去有否擁有衍生產品相關工作經驗?

☐ Yes 有 ☐ No 否

If applicable, please specify the years of experience and types of derivative products:

如適用，請註明衍生產品相關工作經驗及衍生產品類別：

F. IDENTITY DECLARATION 身份聲明

1. Do you have any relationship with the director(s) or employee(s) of Funderstone Group or their respective associated companies?

閣下(等)是否與 Funderstone 集團或其各自之聯營公司之董事或僱員有任何關係?

☐ No 否
☐ Yes 是

Details are 詳情為: _____

2. Are you a director or an employee or an accredited person of any exchange participant of the Hong Kong Exchange or any licensed or registered person of the Securities and Futures Commission?

閣下(等)是否香港交易所之交易所參與者或證監會之持牌人或註冊人之董事、僱員或認可人士?

☐ No 否
☐ Yes 是

Details are 詳情為: _____

3. Are you a current or former senior official or member in public office in the local or foreign government (e.g. appointed member of committee), involved in any political activities such as political party or government consultant or holding a current or a former senior management position of a state-owned enterprise or listed company?

閣下(等)是否現任職或曾任職於香港或海外政府部門之高級管理官員或擔任公職(如政府委任之委員會)、現正或曾經從事任何政治工作(如政黨人士或政府顧問等)或國營企業或上市公司高級管理層職位?

☐ No 否
☐ Yes 是

Details are 詳情為: _____

4. Is your Relevant Person (see point 5 below) or immediate family member or spouse involved in any of the above activities?

閣下(等)之相關人士(見以下第 5 點)、直系親屬或配偶是否現正或曾經從事以上其中一項活動?

☐ No 否
☐ Yes 是

Details are 詳情為: _____

5. Are you the ultimate and sole beneficial owner(s) of the Account(s) and is fully responsible for all instructions for the operation of the said Account(s)?

閣下(等)是否賬戶的最終及唯一實益擁有人，並完全負責為該(等)賬戶運作所發出的一切指示？

- ☐ No 否
☐ Yes 是

If No, please provide the particulars of ALL the beneficial owner(s) / person(s) who is/are ultimately responsible for originating instructions ("Relevant Person(s))"

如不是，請提供所有實益擁有人 / 最終發出指示的人士("相關人士") 之資料

Chinese Name 中文姓名: _____

English Name 英文姓名: _____

Relationship with you 與閣下(等)的關係:

- ☐ Ultimate Beneficial Owner of Account(s) 該(等)賬戶之最終實益擁有人
☐ Person who is ultimately responsible for originating instructions of Account(s)
 最終負責發出該(等)賬戶指示之人
☐ Your Authorised Person 閣下(等)之獲授權簽署人
☐ Your trustee 閣下(等)之受託人
☐ Others (please specify) 其他(請註明): _____

1. Please provide the identity document and address proof (issued by independent third party within 3 months) of your Relevant Person(s).

請提供閣下(等)之相關人士之身份證明文件及由獨立第三方出具的最近三個月內的地址證明。

2. Please provide passport if your Relevant Persons(s) is/are non-permanent HK resident(s).

若閣下(等)相關人士並非香港永久居民，請提供其護照。

3. Please provide in a timely matter other KYC documents as required by Funderstone Group, from time to time.

請按照 Funderstone 集團不時的要求及時提供其他「認識您的客戶」文件。

G. RELATED MARGIN FINANCING ACCOUNT(S) 相關保證金融資賬戶 (For Margin Account only 只適用於保證金賬戶)

1. Does your spouse have a margin account with Funderstone Group? (If your spouse is not the Joint Applicant)
 閣下(等)的配偶是否持有 Funderstone 集團的保證金賬戶？(如閣下(等)的配偶並非聯名申請人)？
☐ No 否
☐ Yes 是
 Name of the Spouse 配偶姓名: _____
 Account No. 賬戶號碼: _____
2. Are you either alone or with your spouse in control of 35% or more of the voting rights of another margin client of Funderstone Group?
 閣下(等)是否單獨或與配偶共同控制 Funderstone 集團其他保證金賬戶持有人 35%或以上之表決權？
☐ No 否
☐ Yes 是
 Name of the Relevant Account 相關賬戶名稱: _____
 Account No. 賬戶號碼: _____

H. OPERATING APPLICANT 操作申請人 (APPLICABLE TO JOINT ACCOUNT ONLY) (只適用於聯名賬戶)

We hereby agree and confirm the following person(s) are the Operating Applicant(s) of the Account ("Operating Applicant(s)"). All instructions given by the Operating Applicant(s) shall be treated as joint instructions given by us. We hereby declare that we shall be fully responsible for any instructions given or purported to be given relating to or for the Account by the Operating Applicant(s) (including but not limiting to the verbal instructions or written instructions), and shall fully indemnify Funderstone Group against all damages, losses, costs and expenses whatsoever incurred as a result of any act, inactivity or omission of the Operating Applicant(s).

本人等謹此同意及確認下列人士為本賬戶的操作申請人(「操作申請人」)。由操作申請人發出的指示等同由本人等共同決定及發出的指示。本人等茲聲明對由操作申請人或聲稱為操作申請人所發出之任何為或與賬戶相關指示(包括但不限於口頭指示或書面指示)承擔全部責任，並會就 Funderstone 集團因該等操作申請人之任何行為，不作為或遺漏而引致的一切賠償、損失、費用及開支向 Funderstone 集團作出全部彌償。

- ☐ Primary Applicant 主要申請人 ☐ Joint Applicant 聯名申請人
☐ Either Primary Applicant or Joint Applicant 主要申請人或聯名申請人 ☐ Both Primary Applicant and Joint Applicant 主要申請人及聯名申請人

I. FATCA QUESTIONNAIRE AND DECLARATION 海外帳戶稅收合規法案問卷及聲明

This Part allows you to declare your identity under the Foreign Account Tax Compliance Act ("FATCA") classification.

請於本部分根據美國《海外帳戶稅收合規法案》(「FATCA」) 申報閣下的身份。

Do you possess any of the following indicia of U.S. status? 閣下是否擁有以下任何一項美國身份指標?

(1) U.S. citizenship/tax residency (e.g. U.S. passport/Green Card holder, U.S. taxpayer, etc.) 美國公民 / 繳納美國稅務的居民 (如美國護照 / 綠卡持有者、美國納稅人等)	☐ YES 是 ☐ NO 否
(2) U.S. place of birth 美國出生地	☐ YES 是 ☐ NO 否
(3) U.S. address (e.g. residential address, mailing address, P.O. box) 美國地址 (如居住地址、郵寄地址、郵政信箱)	☐ YES 是 ☐ NO 否
(4) U.S. telephone number (e.g. home, work, mobile, fax nos.) 美國電話號碼 (如住宅、工作、流動、傳真號碼)	☐ YES 是 ☐ NO 否
(5) Standing instructions to pay amounts from Funderstone Group account to an account maintained in U.S. 從 Funderstone 集團之戶口向美國之銀行戶口設置款項轉帳常設指示	☐ YES 是 ☐ NO 否
(6) Are you holding/Did you hold 10% or more shareholding, directly or indirectly, in any company / entity registered in US? If "Yes", please specify: 閣下現正或曾否, 直接或間接地持有於美國登記之公司 / 團體逾 10% 或以上的股份? 若「是」, 請詳述: Name of Organization 機構名稱: _____ City / State of Registration 登記市/州份: _____ Company Registration Number 公司註冊號: _____ Shares held up to the date of account opening 截至開戶日當天的實際持控股權權益: _____ shares 股 (_____ %)	☐ YES 是 ☐ NO 否
(7) Are you holding any property or maintaining investment account in US? If "Yes", please specify: 閣下是否持有任何美國物業或擁有在美國開立之投資戶口? 若「是」, 請詳述: Address of Property 物業地址: _____ Investment Objective: Business Investment in US / Immigration Investment / Education Fund / Personal Income Growth / Retirement / Other (please specify): 投資目的: 在美國商業投資 / 移民投資 / 教育基金 / 個人增值 / 退休金 / 其他 (請註明): _____	☐ YES 是 ☐ NO 否

FATCA Identity Declaration FATCA 身份聲明

Additional Document

☐ I confirm that I am a U.S. citizen and/or resident in the U.S. for tax purpose (green card holder or resident under the substantial presence test) and my U.S. Taxpayer Identification Number (U.S. TIN) is as follows: 本人確認, 本人就課稅目的而言為美國公民 / 或美國居民 (綠卡持有人或根據實質居留測試被定性為居民), 而本人的美國聯邦納稅人識別號碼 (美國納稅人識別號碼) 如下: 	W-9 Form 表格
☐ I confirm that I am not a U.S. citizen or resident in the U.S. for tax purposes, but have indicia of U.S. status. 本人確認, 本人就課稅目的而言並非美國公民或美國居民, 但有美國身份指標。	W-8BEN Form 表格
☐ I confirm that I am not a U.S. citizen or resident in the U.S. for tax purposes and have no indicium of U.S. status. 本人確認, 本人就課稅目的而言並非美國公民或美國居民, 亦無美國身份指標。	None 無
☐ I declare and confirm that the information provided in this Part is true, accurate and complete. I undertake to inform Funderstone Group within 30 calendar days if there is a change in any information which I have provided in this Part. 本人在本部份所提供的資料為真實、準確及完整的。本人同意倘若本人在本部份所提供的資料有任何變更, 本人會於 30 個曆日內通知 Funderstone 集團。	

J. PERSONAL DATA 個人資料

Funderstone Group may use your personal data in direct marketing, and may also provide your personal data to other third parties for their use in direct marketing. Please refer to Personal Information Collection Statements in the relevant section/schedule of the "Terms and Conditions for Trading Account" for details.

Funderstone 集團可能會使用閣下(等)的個人資料作直接促銷及提供閣下(等)的個人資料予其他機構作其直接促銷之用。詳見《交易賬戶條款及條件》

相關章節/附表的個人資料收集聲明。

Your choice(s) indicated “✓” below represent(s) your present choice whether or not to receive direct marketing contact or information which shall become effective from the date Funderstone Group approves this application. This replaces any choice or request regarding direct marketing communicated by you to Funderstone Group prior to this application, unless this application is withdrawn or rejected for whatever reason.

閣下(等)在以下空格填上“✓”號與否的選擇代表閣下(等)現時是否接受直接促銷聯繫或資訊，該選擇將於Funderstone 集團批核此申請當日起生效。除非基於任何原因閣下(等)撤回此申請或申請被拒，該選擇將取代閣下(等)在此申請前曾向Funderstone 集團表達之任何有關直接促銷的選擇或要求。

Please note that your below choice applies to the direct marketing of the classes of products, services and/or subjects as set out in the Circular on the Personal Data (Privacy) Ordinance (Cap. 486 of the Laws of Hong Kong) and the Code of Practice on Consumer Credit Data. Please also refer to the Circular on the kinds of personal data which may be used in direct marketing and the classes of persons to which your personal data may be provided for them to use in direct marketing.

請注意，閣下(等)以下選擇適用於《個人資料(私隱)條例》(香港法例第486章)通知及《個人信貸資料實務守則通函》所列產品、服務及/或促銷標的類別之直接促銷。該通知亦列明可能用於直接促銷之個人資料種類，以及可能轉移有關個人資料作直接促銷之資料承轉人類別。

Please check (“✓”) this box if you have read and understood the terms in Personal Information Collection Statements in the relevant section/schedule of the “Terms and Conditions for Trading Account”, and accept the terms set out therein. 如閣下已閱讀及明白《交易賬戶條款及條件》相關章節/附表的個人資料收集聲明，及接受其載有的條文，請於此空格填上“✓”號。	Please check (“✓”) this box if you <u>do not object</u> to the use of your personal data in direct marketing by Funderstone Group. 如閣下<u>不反對</u>Funderstone 集團使用閣下的個人資料作直接促銷，請於此空格填上“✓”號。	Please check (“✓”) this box if you <u>do not object</u> to the provision of your personal data by Funderstone Group to any other third parties for their use in direct marketing. 如閣下<u>不反對</u>Funderstone 集團提供閣下的個人資料予Funderstone 集團的任何其他公司作其直接促銷之用，請於此空格填上“✓”號。	Please check (“✓”) this box if you <u>do not object</u> Funderstone Group to transfer or move your personal data out of Hong Kong. 如閣下<u>不反對</u>Funderstone 集團將閣下的個人資料轉移或發出香港境外，請於此空格填上“✓”號。
□	□	□	□

K. CLIENT'S DECLARATION, CONFIRMATION AND AGREEMENT 客戶聲明、確認及協議

- I/We agree to open the account(s) listed in Section A2 herein (“**Account(s)**”) with Funderstone Group, and is bound by this Account Opening Form, “Acknowledgement by Client”, the relevant sections/schedules of the “Terms and Conditions for Trading Account” and all the provisions of the rules and guidelines promulgated by Funderstone Group from time to time (collectively referred to as “**All Those Terms**”). All Those Terms have been published at www.funderstonesec.com. I/We have already been advised by Funderstone Group to seek independent legal advice for All Those Terms. I/We agree that Funderstone Group can request me/us to sign any documents as required under All Those Terms.
 本人(等)同意遵守開戶表格、《客戶守則》、《交易賬戶條款及條件》之相關章節/附表的所有條款及條件及其他由Funderstone 集團不時發出之守則及指引內之所有條款及條件 (統稱“**該等條款**”) 開立此開戶表格A2章節所列出的賬戶 (“**賬戶**”)。該等條款亦已刊載於www.funderstonesec.com上。Funderstone 集團已經建議本人(等)對上述之該等條款尋求獨立法律意見。本人(等)同意Funderstone 集團有權要求本人(等)簽署該等條款所要求的任何文件。
- Before opening the Account(s) with Funderstone Group, I/we have fully read and understood the contents of All Those Terms and I/we agree, accept and confirm all their provisions and agree and accept to be bound by All Those Terms.
 本人(等)在與Funderstone 集團開立賬戶前已經細閱及完全明白所有該等條款之內容，本人(等)並同意、接受及確認該等條款內所有條款及條件，並同意及接納受該等條款的約束。
- I/We hereby declare that unless specifically stated otherwise, I am/we are the person(s) who is/are ultimately responsible for originating the instructions and unless specifically stated otherwise, I am/we are the person(s) who stand(s) to gain the economic benefit of the transactions and bear the economic risk.
 本人(等)特此聲明，除非另有明確述明，否則本人(等)是最終負責發出指示的人，而且除非另有明確述明，否則本人(等)是從交易取得經濟利益及承擔其經濟風險的人。
- I/We hereby acknowledge and confirm that I/we have authorised Funderstone Group to deal with my/our moneys, securities, the Collateral (as defined in the relevant section(s)/schedule(s) of the “Terms and Conditions for Trading Account”) and the Margin (as defined in relevant section(s)/schedule(s) of the “Terms and Conditions for Trading Account”) upon and in accordance with the relevant section(s)/schedule(s) of the “Terms and Conditions for Trading Account” (the “**Relevant Standing Authority**”). I/We acknowledge and confirm that the contents and effects of the Relevant Standing Authority have been explained to me/us, and I/we fully understand:- (i) the contents and effects of the Relevant Standing Authority; and (ii) I/we hereby authorise Funderstone Group to renew the Relevant Standing Authority at its absolute discretion. The Standing Authority (Client Securities) is applicable to the Margin Account and Futures Account Clients while it is not applicable to Clients who only hold a Cash Account. The Standing Authority (Client Money) is applicable to Clients with multiple accounts while it is not applicable to Clients holding one account only.
 本人(等)謹此知悉及確認，已根據《交易賬戶條款及條件》內適用部分(“**適用常設授權**”)，授權Funderstone 集團處置本人(等)的金錢、證券、抵押品(其定義見《交易賬戶條款及條件》之相關章節/附表)及保證金(其定義見《交易賬戶條款及條件》之相關章節/附表)。本人(等)知悉及確認適用常設授權的內容及作用已獲清楚解釋，而本人(等)亦完全明白(i)適用常設授權的內容及作用；及(ii)本人(等)已授權Funderstone 集團有絕對的酌情權延續適用常設授權。常設授權(客戶證券)適用於保證金賬戶及期貨賬戶的客戶，並不適用於只持有現金賬戶的客戶。常設授權(客戶款項)適用於

持有多於一個賬戶的客戶，並不適用於只持有單一賬戶的客戶。

5. I/We acknowledge and confirm the Relevant Standing Authority is required to be renewed annually. I/We authorise Funderstone Group to renew the Relevant Standing Authority annually and I/we have the choice to reject the renewal. If no written objection is received by mail from me/us, it means I/we agree and accept the extension and to be bound by the renewed Relevant Standing Authority.
 本人(等)知悉及確認適用常設授權每年需延續一次。本人(等)授權Funderstone 集團每年延續適用常設授權，本人(等)可提出反對。如Funderstone 集團未收到本人(等)書面反對，則表示本人(等)同意及接受延續適用常設授權並繼續受其約束。
6. I/We will NOT create any charge, pledge or encumbrance over the whole or any part of the Account(s) when such Account(s) is/are held with Funderstone Group.
 本人(等)在Funderstone 集團擁有賬戶期限內不會對該(等)帳戶的整體或任何部分設置任何押記、質押或產權負擔。
7. I/We declare and confirm that all the information provided in this Account Opening Form is true, complete and correct and authorise Funderstone Group to confirm this from any source. Funderstone Group is entitled to rely on such information and representations for all purposes, unless and until Funderstone Group receives notice in writing from me/us of any change of the aforesaid information.
 本人(等)聲稱及確認，所有填寫於本開戶表格的資料均屬真實，完全及正確，並授權Funderstone 集團可向任何方面查證。除非及直至Funderstone 集團接到本人(等)的書面通知變更提供的資料，否則Funderstone 集團有權根據此等資料及聲明作一切用途。
8. I/We acknowledge and confirm that I/we have received, read and fully understood the Risk Disclosure Statements as set out in the relevant section(s)/schedule(s) of the "Terms and Conditions for Trading Account" in a language of my/our choice. I/We confirm that I/we have been invited to ask questions in writing and seek independent legal advice, and that I/we fully understood and accepted all the aforesaid Risk Disclosure Statements.
 本人(等)知悉及確認已收到一份按本人(等)選擇的語言的《交易賬戶條款及條件》之相關章節/附表內的風險披露聲明，且本人(等)已閱讀及完全明白該風險披露聲明。本人(等)亦確認已獲邀請透過書面途徑提出問題及尋求獨立法律意見，並確認本人(等)已完全明白及接受所有上述的風險披露聲明。
9. I/We have carefully considered the Risk Disclosure Statements as set out in the relevant section(s)/schedule(s) of the "Terms and Conditions for Trading Account" and recognize that trading in investment products involves a high degree of risk. I/We have considered my/our financial position and investment objective, I/we confirm that I am/we are financially able to assume such risks and to sustain any losses resulting from such trading and voluntarily confirm that trading in investment products is a suitable investment vehicle for me/us.
 本人(等)已仔細考慮《交易賬戶條款及條件》之相關章節/附表的風險披露聲明，而且瞭解進行投資產品買賣所涉及之高風險。本人(等)已考慮到本人(等)的財務狀況和投資目標，並確認本人(等)之財務狀況能承擔該交易帶來之風險和承受其帶來之任何損失，亦自願確認買賣投資產品是一項對本人(等)合適的投資方式。
10. I/We acknowledge and confirm to trade derivative products with and through Funderstone Group unless otherwise ticked in the box below. I/We confirm and accept the explanation of risks in trading different derivative products provided by Funderstone Group. I/We clearly understand the risks that may be caused by trading these derivative products and agree to bear such risks, as well as to take responsibilities involved.
 除非本人(等)在下面方格內加上剔號，否則本人(等)知悉及同意與Funderstone 集團進行衍生產品買賣交易。本人(等)現確認及接受Funderstone 集團就有關交易各類衍生產品作出之風險解釋，本人(等)清楚明白相關衍生產品所帶來的風險及同意承擔風險及責任。

☐ I/We will **NOT** trade derivative products with and through Funderstone Group. However, if I/we start trading derivative products with and through Funderstone Group, I/we acknowledge and accept the risks that may be caused by trading these derivative products and agree to bear such risks, as well as to take responsibilities involved.
 本人(等)不會在Funderstone 集團進行衍生產品買賣交易。如本人(等)日後決定通過Funderstone 集團進行衍生產品買賣交易，即代表本人(等)知悉及接受相關衍生產品所帶來的風險及同意承擔風險及責任。
11. I/We acknowledge and confirm that I/we should pay attention to the announcement / notice promulgated on www.funderstonesec.com from time to time.
 本人(等)知悉及確認本人(等)應不時留意於www.funderstonesec.com刊載的公告及通知。
12. I am/We are hereby informed that Funderstone Group intends to use my/our personal data for the direct marketing of: (i) financial services and investment products; (ii) related promotional schemes; (iii) financial and investment advices; or (iv) promotional and marketing events of Funderstone Group for the aforesaid services or products. Such personal data includes my/our name, contact details, financial background and statistical data which are provided to Funderstone Group under this Account Opening Form or obtained by Funderstone Group from time to time. I/We understand that I/we may, at any time, require Funderstone Group to cease to use my/our personal data for direct marketing through such channel prescribed by Funderstone Group. I/We acknowledge and accept the terms in the relevant section(s)/schedule(s) of the "Terms and Conditions for Trading Account" relating to the Personal Information Collection Statements.
 本人(等)現獲告知Funderstone 集團擬使用本人(等)之個人資料以直接促銷: (i) 金融服務和產品; (ii) 相關優惠計劃; (iii) 金融與投資建議; 或(iv) Funderstone 集團就前述產品及服務之業務推廣和宣傳活動。該等個人資料包括本人(等)在本開戶表格中不時向Funderstone 集團提供的或由Funderstone 集團不時獲得的姓名、聯絡詳情、財務背景及統計資料等個人資料。本人(等)明白本人(等)可以隨時通過Funderstone 集團指定的渠道要求Funderstone 集團停止在直接促銷中使用本人(等)的個人資料。本人(等)知悉及同意《交易賬戶條款及條件》相關章節/附表內個人資料收集聲明。
13. I/We acknowledge and accept the terms in the relevant section(s)/schedule(s) of the "Terms and Conditions for Trading Account" relating to trading under Shanghai-Hong Kong Stock Connect/Shenzhen-Hong Kong Stock Connect (collectively referred to as "**Stock Connect**") through Funderstone Group. I/We understand and accept the risks relating to trading of A-Shares via the Northbound trading under Stock Connect through Funderstone Group and agree to bear such risks, as well as to take responsibilities involved.
 本人(等)知悉及同意《交易賬戶條款及條件》內相關章節/附表內有關通過Funderstone 集團進行滬港通及/或深港通之交易的相關條款。本人(等)明白及同意通過Funderstone 集團在滬港通及/或深港通的北向交易之下進行A股交易之相關風險及責任。
14. I/We acknowledge and accept that if I/we conduct any trading of A-shares under Stock Connect through Funderstone Group, I/we acknowledge and accept the risks relating to trading of A-Shares under Stock Connect, agree to bear such risks, as well as to take responsibilities involved and agree to Funderstone Group's use of my/our personal data in such relation.
 本人(等)知悉及同意，如本人(等)日後通過Funderstone 集團在滬港通及/或深港通下進行A股交易，即代表本人(等)知悉及接受滬港通及/或深港通下進行A股交易所帶來的風險及同意承擔風險及責任，並同意Funderstone 集團就此使用本人(等)之個人資料。

15. I/We hereby declare that my/our signing in the signature column herein below indicates that I/we have already fully read, confirmed, agreed, accepted, understood and am/are willing to comply with All Those Terms (including all the relevant contents and provisions of this Account Opening Form, "Acknowledgement by Client", the relevant section(s)/schedule(s) of the "Terms and Conditions for Trading Account") and the Risk Disclosure Statements as set out the "Terms and Conditions for Trading Account". In relation to all the above-mentioned contents and provisions, I/we have been invited to seek independent legal advice and have also understood and accepted all the contents and provisions.
 本人(等)茲聲明, 本人(等)於下列簽署欄內簽署, 表示本人(等)已完全細閱、確認、同意、接受、明白及願意遵守該等條款(包括本開戶表格內各項之所有內容、《客戶守則》、《交易賬戶條款及條件》之相關章節/附表)及《交易賬戶條款及條件》內的風險披露聲明的所有內容和細則。關於上述各項所有內容和細則, 本人(等)已獲邀請尋求獨立法律意見, 並完全明白及接受所有其內容和細則。
16. Subject to applicable local laws, I/we hereby consent for Funderstone Group (or any of its local or oversea subsidiaries) to disclose, report, or share my/our information with local and overseas regulators or tax authorities where necessary to establish my/our tax liability in any jurisdiction.
 在不抵觸當地適用的法律的情況下, 本人(等)特此同意Funderstone 集團(或任何其本地及海外附屬公司)可向本地及海外監管機構或稅務機構披露、呈交或提供本人(等)資料以確立本人(等)於任何司法管轄區的稅務責任。
17. Where required by local or overseas regulators or tax authorities, I/we consent and agree that Funderstone Group (or any of its local or oversea subsidiaries) may withhold from my/our Account(s) such amounts as may be required according to applicable laws, regulations and directives.
 因應本地及海外監管機構或稅務機構的要求, 本人(等)同意並准許Funderstone 集團(或任何其本地及海外附屬公司)可按適用的法律、法規和指令在本人(等)賬戶中扣留所須的相關款項。
18. I/We undertake to fully cooperate with Funderstone Group to ensure it meets its obligations under applicable laws, regulations and directives in connection with my/our Account(s).
 本人(等)承諾會與Funderstone集團充分合作, 以確保Funderstone 集團就處理與本人(等)賬戶相關的事宜會符合適用的法律、法規和指令。
19. If there is any inconsistency between the Chinese and English versions of this Account Opening Form, the English version shall prevail.
 本開戶申請表之中英文本如有歧義, 概以英文本為準。

CONFIRMED, AGREED AND SIGNED BY CLIENT 茲由客戶確認、同意並簽署:

Signature of *Sole/Primary/Joint Applicant *獨名/主要/聯名申請人簽署

*Please delete as appropriate 請刪去不適用者

Name 姓名: _____

Date 日期: _____

Signature of Witness 見證人簽署

(To be certified by a person licensed or registered with the SFC or his affiliate, an affiliate of Funderstone Group, professional person, such as a branch manager of a bank, certified public accountant, lawyer or notary public. 由香港證監會發牌或註冊之人士或其聯繫人士、Funderstone 集團聯繫人士、專業人士 (例如: 銀行分行經理、執業會計師、律師或公證人) 核證。)

I, named below, hereby certify that I have met and identified each of the person(s) who executed this Account Opening Form before me, and reviewed his/her/their original identification document(s). 本人(姓名見下)核證已經與本開戶表格簽署人會晤及核對其身份證明文件正本, 而且該等簽署人已在本人面前簽署本開戶表格。

Name 姓名: _____ Qualifications 資格: _____

Signature of Witness

見證人簽署: _____

Date 日期: _____

Notice of Treatment as a Professional Investor ("this Notice")
關於被視為專業投資者的通知 (「本通知」)

Under the Code of Conduct for Persons Licensed by or Registered with the Securities and Futures Commission (as amended from time to time) (the "Code of Conduct") issued by the Securities and Futures Commission of Hong Kong, Funderstone Group may, in dealing with a client, classify such client as a "Professional Investor" where Funderstone Group believes such client falls within the definition of "Professional Investor" under the Securities and Futures Ordinance (the "SFO").

根據香港證券及期貨事務監察委員會發出（經不時修訂）的《證券及期貨事務監察委員會持牌人或註冊人操守準則》（《操守準則》），在與客戶交易的過程中，若 Funderstone 集團相信該客戶符合《證券及期貨條例》對「專業投資者」的定義，Funderstone 集團可將該客戶歸類為「專業投資者」。

In light of your portfolio adequacy, Funderstone Group has classified you as a Professional Investor of the following product(s) and market(s):
 鑒於閣下的資產充足狀況，Funderstone 集團已將閣下歸類為以下產品及市場的專業投資者：

**Please delete as appropriate 請刪去不適用者*

Relevant Products 相關產品	Relevant Markets 相關市場
(a) *Stocks 股票	(i). *Hong Kong 香港
(b) *Fixed Income Products (e.g. Bonds, Convertible Bonds, etc) / Foreign Currency Deposit 定息投資產品（例如債券、可換股債券等）/ 外幣存款	(ii). *Mainland China 中國內地
(c) *Mutual Funds / Unit Trusts 共同基金 / 單位信託基金	(iii). *United States 美國
(d) *Derivatives and Leverage Products (e.g. Futures, Options, Warrants, Callable Bull/Bear Contracts, Accumulator, Margin Trading, etc) 衍生工具/槓桿產品（例如期貨、期權、認股權證/窩輪、可贖回牛/熊證、累計期權、保證金交易等）	(iv). *Japan 日本
(e) *Structured Products (e.g. Equity-Linked Deposit / Notes, Currency-Linked Deposit, etc) 結構化產品（例如股票掛鉤存款/票據、貨幣掛鉤存款等）	(v). *United Kingdom 英國
(f) *Others (please specify) 其他（請註明）： _____	(vi). *Europe 歐洲
	(vii). *Australia 澳洲
	(viii). *Singapore 新加坡
	(ix). *Malaysia 馬來西亞
	(x). *Others (please specify) *其他（請註明）： _____ _____

Below are the details of the risks and consequences of being treated as a Professional Investor and the right to withdraw from being treated as Professional Investor at any time.

以下為當客戶被視為專業投資者的風險及後果，以及客戶可隨時撤回被視為專業投資者的權利。

1. Risks and Consequences of being treated as an Individual Professional Investor
被視為個人專業投資者的風險及後果

As you are treated as Professional Investor described in the SFO and the PI Rules, please be reminded to take note of the details under paragraphs 15.4 and 15.5 of the Code of Conduct and ensure that you understand the risks and consequences of being treated as an Individual Professional Investor. **Annexure 2** provides provisions that may be waived for Professional Investors, which is a brief summary of paragraphs 15.4 and 15.5 of the Code for reference only.

由於閣下被視為《證券及期貨條例》及《專業投資者規則》定義的專業投資者，閣下務須閱讀《操守準則》第 15.4 及 15.5 段的詳細內容，並確保閣下明白被視為個人專業投資者的風險及後果。**附件 2** 載列之專業投資者可豁免的規定為《操守準則》第 15.4 及 15.5 段的摘要，只用作參考之用。

Where you act as an intermediary to effect transactions, upon request from Funderstone Group and/or the regulatory body(ies) and within the applicable time frame, you shall provide the required information about the ultimate client and person giving order to the regulatory body(ies) even the request is made after termination of your account(s) with Funderstone Group.

如閣下以中介人身份執行交易，閣下需應 Funderstone 集團及/或監管部門的要求，在適用的時限內向監管部門提供最終客戶及發出指示人士的資料。即使是閣下在 Funderstone 集團的戶口結束後才提出的要求，此規定亦適用。

Notwithstanding your Professional Investor status with Funderstone Group, Funderstone Group would remind you that you are obliged to observe all rules, regulations and laws of Hong Kong or any of its regulatory authority which apply to you. Accordingly, Funderstone Group would advise that you consult your own legal advisers.

儘管閣下在 Funderstone 集團具有專業投資者的資格，但 Funderstone 集團謹提醒閣下，閣下必須遵守香港或適用於閣下的任何香港監管部門的所有

規則、規例及法例。因此，Funderstone 集團建議閣下自行徵詢法律顧問的意見。

If you agree to be treated as a Professional Investor, please sign and return to Funderstone Group the Declaration of Consenting to Being Treated as a Professional Investor (the “**Declaration**”) as attached herewith.

假如閣下同意被視為專業投資者，請簽署隨函夾附的「同意被視為專業投資者之聲明」（「**聲明**」）並交給 Funderstone 集團。

If you find yourself no longer fall within the definition of Professional Investor as defined in the SFO and the PI Rules, please notify Funderstone Group in writing immediately.

假如閣下發現閣下不再符合《證券及期貨條例》及《專業投資者規則》對專業投資者的定義，請立即以書面方式通知 Funderstone 集團。

If you agree to be treated as a Professional Investor, Funderstone Group is required to carry out a confirmation exercise annually to enable Funderstone Group to ensure that you continue to fulfil the requisite requirements under the PI Rules.

假如閣下同意被視為專業投資者，Funderstone 集團需要每年向閣下進行一次確認，從而確保閣下繼續符合《專業投資者規則》所界定的有關規定。

Should you have any questions regarding this Notice or require further clarification or information, please feel free to contact Funderstone Group or seek professional advice.

如若閣下對本通知有任何疑問，或需要進一步的說明或資料，請與 Funderstone 集團聯絡或徵詢專業意見。

2. Right to withdraw from being treated as a Professional Investor 撤回被視為專業投資者的權利

If you become a Professional Investor, you have the right to withdraw from being treated as a Professional Investor for all products or markets or any part thereof for the purpose of the Code of Conduct at any time by **giving written notice** to Funderstone Group. After receiving such written notice, Funderstone Group will **process your request within 14 business days** and inform you about the effective date of such withdrawal. Any request of withdrawal given by you shall be without prejudice to and shall not affect the provision of any services rendered and/or products offered to you on the basis that you are a Professional Investor prior to such withdrawal taking effect.

閣下若成為專業投資者，閣下有權利隨時向 Funderstone 集團**提交已簽署的書面通知**，要求撤回對於所有或任何一項產品類別及/或相關市場被視為《操守準則》所指的專業投資者身份。當收到閣下的書面通知，Funderstone 集團會在**14 個工作天之內處理**閣下的要求，並會通知閣下該撤回的生效日期。在該撤回還未生效之前，Funderstone 集團仍會視閣下為專業投資者，並在此條件下向閣下提供任何相關服務及/或產品並無任何影響，且無損各方權利。

Funderstone Group also has the right, at any time, to stop treating you as a Professional Investor by giving not less than 14 days written notice to you. Such will be effective upon the expiry of such notice period, unless you follow the procedures to apply as a Professional Investor as Funderstone Group requires from time to time.

Funderstone 集團也有權利隨時向閣下發出通知期不少於 14 天的書面通知停止閣下被視為一名專業投資者，在通知期屆滿後生效。除非閣下按 Funderstone 集團不時要求的手續重新辦理申請成為專業投資者。

3. Accurate information 準確資料

You confirm that the information and supporting document(s) provided in this account opening form is valid, complete and accurate. If there is any change to the information and relevant supporting document(s) provided and such change will have impact on your continuity of Professional Investor status, you are obligated to immediately notify Funderstone Group of any changes to that information, provide relevant supporting document(s) and/or re-perform the assessment.

閣下須確認在本開戶表格中所提供的資料及相關證明文件均屬有效、真實並正確無誤。如閣下所提供的資料及相關證明文件在之後有任何改變，而其改變足以影響閣下繼續成為專業投資者，閣下有責任即時通知 Funderstone 集團更新資料、重新提供相關的證明文件及/或重新進行評估。

Client Declaration

客戶聲明

- ☐ I hereby confirm that the information provided above is true and complete. Funderstone Group is entitled to rely fully on such information for all purposes, unless they receive notice in writing from us of any change.
 本人確認上述資料完全真實及完整。除非 Funderstone 集團收到本人的任何書面變更通知，否則你們有權完全倚賴該等資料作任何用途。
- ☐ I fully understand the above-mentioned Notice of Treatment as a Professional Investor fully explained by Licensed Representative, including:
 本人完全明白由持牌人士解釋的以上的關於被視為專業投資者的通知，包括：
- (a) I fall within the definition of Professional Investor under the SFO and the PI Rules;
 本人符合《證券及期貨條例》及《專業投資者規則》對「專業投資者」的定義；
 - (b) Funderstone Group has explained to us the risks and consequences of being treated as a Professional Investor and the right to withdraw from being treated as such as contained in the Notice provided to us by them;
 Funderstone 集團已向本人解釋被視為專業投資者的風險及後果，以及撤回被視為專業投資者的權利，如 Funderstone 集團向本人提供的通知中所述；
 - (c) I fully understand the provisions in the Notice and I am fully aware of the risks and consequences of being treated as a Professional Investor and our right to withdraw from being treated as such for all products or markets or any part thereof, and agree to be treated as such; and
 本人完全明白通知中的條文，本人完全知悉被視為專業投資者的風險及後果以及本人撤回被視為所有或任何一項產品類別及 / 或相關市場的專業投資者的權利，並同意被視為專業投資者；及
 - (d) I agree that I shall, immediately upon request by Funderstone Group, inform regulatory body(ies) of the identity, address, occupation, and contact details of the ultimate beneficiary(ies) if I effect a transaction otherwise than for our own benefits.
 本人同意，若本人並非為本人的利益而執行一項交易，本人須在 Funderstone 集團要求時，立即通知監管機構關於最終受益人的身份、地址、職業及聯絡資料。
 - (e) I further agree to provide supporting documents for verification of our status as a Professional Investor upon request.
 本人進一步同意，為核實本人的專業投資者身份，本人同意按需要提供相關證明文件。
- ☐ I hereby give consent to be treated as an Individual Professional Investor for the relevant product(s) and market(s) indicated below:
 本人謹此同意成為以下產品類別和市場的個人專業投資者：
- *Please delete as appropriate 請刪去不適用者*

Relevant Products 相關產品	Relevant Markets 相關市場
(a) *Stocks 股票	(i). *Hong Kong 香港
(b) *Fixed Income Products (e.g. Bonds, Convertible Bonds, etc) / Foreign Currency Deposit 定息投資產品（例如債券、可換股債券等）/ 外幣存款	(ii). *Mainland China 中國內地
(c) *Mutual Funds / Unit Trusts 共同基金 / 單位信託基金	(iii). *United States 美國
(d) *Derivatives and Leverage Products (e.g. Futures, Options, Warrants, Callable Bull/Bear Contracts, Accumulator, Margin Trading, etc) 衍生工具/槓桿產品（例如期貨、期權、認股權證/窩輪、可贖回牛/熊證、累計期權、保證金交易等）	(iv). *Japan 日本
(e) *Structured Products (e.g. Equity-Linked Deposit / Notes, Currency-Linked Deposit, etc) 結構化產品（例如股票掛鉤存款/票據、貨幣掛鉤存款等）	(v). *United Kingdom 英國
(f) *Others (please specify) 其他（請註明）：_____	(vi). *Europe 歐洲
	(vii). *Australia 澳洲
	(viii). *Singapore 新加坡
	(ix). *Malaysia 馬來西亞
	(x). *Others (please specify) *其他（請註明）： _____ _____

CONFIRMED, AGREED AND SIGNED BY 茲由確認、同意並簽署：

Signature of Sole Applicant or Operating Applicant 獨名申請人/操作申請人簽署	Signature of Joint Applicant 聯名申請人簽署
Name 姓名: _____ Date 日期: _____	Name 姓名: _____ Date 日期: _____

Signature of Witness 見證人簽署

(To be certified by a person licensed or registered with the SFC or his affiliate, an affiliate of Funderstone Group, professional person, such as a branch manager of a bank, certified public accountant, lawyer or notary public. 由香港證監會發牌或註冊之人士或其聯繫人士、Funderstone 集團聯繫人士、專業人士 (例如: 銀行分行經理、執業會計師、律師或公證人) 核證。)

I, named below, hereby certify that I have met and identified each of the person(s) who executed this Client Declaration before me, and reviewed his/her/their original identification document(s). 本人(姓名見下)核證已經與客戶聲明簽署人會晤及核對其身份證明文件正本, 而且該等簽署人已在本人面前簽署客戶聲明。

Name 姓名: _____ Qualifications 資格: _____

Signature of Witness

見證人簽署: _____

Date 日期: _____

Declaration from Staff 職員聲明 (to be completed by staff of Funderstone Group 此欄由 Funderstone 集團職員填寫)

Professional Investor 專業投資者

I have clearly explained the Notice of Treatment as a Professional Investor, Client Declaration, Definition of Professional Investor (**Annexure 1**) and Provisions that may be waived for Professional Investors (**Annexure 2**) in this Account Opening Form in a language of the Client's choice and have also invited and suggested the Client to ask questions and to seek independent legal advice.

本人已根據客戶所選擇的語言向其提供及解釋本開戶表格中關於被視為專業投資者的通知、客戶聲明、專業投資者的定義 (**附件 1**) 及專業投資者可豁免的規定 (**附件 2**), 並已邀請及建議客戶就其內容和細則提出問題及尋求獨立法律意見。

I, the undersigned Licensed Representative ("LR"), confirm that I have assessed the above Client based on the information and supporting documents provided by it in this Account Opening Form above. I am satisfied that it meets the requirements for Individual Professional Investor of product(s) and market(s) indicated in the above Client Declaration and can be treated as such.

本人作為簽署此文件的持牌人士, 確認已基於由上述客戶於此開戶表格所提供的資料及證明文件評估上述客戶。本人信納上述客戶符合對個人專業投資者的規定, 並可視上述客戶為客戶聲明內剔選的產品和市場的個人專業投資者。

Risk Disclosure Statements 風險披露聲明

I have clearly explained the Risk Disclosure Statements as set out in the "Terms and Conditions for Trading Account" in a language of the Client's choice and have also invited and suggested the Client to ask questions and to seek independent legal advice.

本人已根據客戶所選擇的語言向其提供及解釋《交易賬戶條款及條件》內的風險披露聲明, 並已邀請及建議客戶就其內容和細則提出問題及尋求獨立法律意見。

Name of Staff 職員姓名: _____ Position 職位: _____

Staff's CE No. 職員中央編號: _____

Signature of Staff

職員簽署: _____ (signed by LR 由持牌人士簽署)

Date 日期: _____

For Funderstone Group's Use Only
Funderstone 集團專用

Base on the information provided by Client in this Account Opening Form, we are **satisfied** that the Client meets Funderstone Group's requirements for account opening and has provided valid KYC documents.

基於客戶在此開戶表格中提供的資料，我們已**信納**客戶已符合 Funderstone 集團的開戶要求，而且客戶已提供有效的「認識您的客戶」文件。

We are **satisfied** that the Client meets the requirements for Individual Professional Investor of product(s) and market(s) indicated in the above Client Declaration and has provided valid asset proof and **can** be treated as such.

本公司已**信納**客戶已符合對個人專業投資者的規定及已提供有效的資產證明，並**可**視客戶為以上客戶聲明中標示的產品及市場之個人專業投資者。

LR's Signature

持牌人士簽署

LR's Name / CE No.

持牌人士姓名 / 中央編號

Team / Dept

組別 / 部門

Date

日期

Endorsed by Responsible Officer 由負責人員批核:

☐ Approve 批准

☐ Reject 否決

Responsible Officer's Signature

負責人員簽署

Responsible Officer's Name

負責人員姓名

Team / Dept

組別 / 部門

Date

日期

Annexure 1
附件 1

Definition of Professional Investor
專業投資者的定義

The Securities and Futures Ordinance (Cap. 571 of the Laws of Hong Kong) ("SFO") provides the following definition of "Professional Investor":
《證券及期貨條例》(香港法例第 571 章) (「《證券及期貨條例》」) 提供以下有關「專業投資者」的定義:

- (a) any recognised exchange company, recognised clearing house, recognised exchange controller or recognised investor compensation company, or any person authorised to provide automated trading services under section 95(2) of SFO;
認可交易所、認可結算所、認可控制人或認可投資者賠償公司，或根據《證券及期貨條例》第 95 (2) 條獲認可提供自動化交易服務的人；
- (b) any intermediary, or any other person carrying on the business of the provision of investment services and regulated under the law of any place outside Hong Kong;
中介人，或經營提供投資服務的業務並受香港以外地方的法律規管的其他人；
- (c) any authorised financial institution, or any bank which is not an authorised financial institution but is regulated under the law of any place outside Hong Kong;
認可財務機構，或並非認可財務機構但受香港以外地方的法律規管的銀行；
- (d) any insurer authorised under the Insurance Companies Ordinance (Cap. 41 of the Laws of Hong Kong), or any other person carrying on insurance business and regulated under the law of any place outside Hong Kong;
根據《保險公司條例》(香港法例第 41 章) 獲授權的保險人，或經營保險業務並受香港以外地方的法律規管的其他人；
- (e) any scheme which—
符合以下說明的計劃—
- (i) is a collective investment scheme authorised under section 104 of SFO; or
屬根據《證券及期貨條例》第 104 條獲認可的集體投資計劃；或
- (ii) is similarly constituted under the law of any place outside Hong Kong and, if it is regulated under the law of such place, permitted to be operated under the law of such place,
以相似的方式根據香港以外地方的法律成立，並(如受該地方的法律規管)根據該地方的法律獲准許營辦，
- or any person by whom any such scheme is operated;
或營辦任何該等計劃的人；
- (f) any registered scheme as defined in section 2(1) of the Mandatory Provident Fund Schemes Ordinance (Cap. 485 of the Laws of Hong Kong), or its constituent fund as defined in section 2 of the Mandatory Provident Fund Schemes (General) Regulation (Cap 485. sub. leg. A of the Laws of Hong Kong), or any person who, in relation to any such registered scheme, is an approved trustee or service provider as defined in section 2(1) of that Ordinance or who is an investment manager of any such registered scheme or constituent fund;
《強制性公積金計劃條例》(香港法例第 485 章)第 2(1)條界定的註冊計劃，或《強制性公積金計劃(一般)規例》(香港法例第 485 章，附屬法例 A)第 2 條界定的該等計劃的成分基金，或就任何該等計劃而言屬該條例第 2(1)條界定的核准受託人或服務提供者或屬任何該等計劃或基金的投資經理的人；
- (g) any scheme which—
符合以下說明的計劃—
- (i) is a registered scheme as defined in section 2(1) of the Occupational Retirement Schemes Ordinance (Cap. 426 of the Laws of Hong Kong); or
屬《職業退休計劃條例》(香港法例第 426 章)第 2(1)條界定的註冊計劃；或
- (ii) is an offshore scheme as defined in section 2(1) of that Ordinance and, if it is regulated under the law of the place in which it is domiciled, is permitted to be operated under the law of such place,
屬該條例第 2(1)條界定的離岸計劃，並(如以某地方為本籍而受該地方的法律規管)根據該地方的法律獲准許營辦，
- or any person who, in relation to any such scheme, is an administrator as defined in section 2(1) of that Ordinance;
或就任何該等計劃而言屬該條例第 2(1)條界定的管理人的；
- (h) any government (other than a municipal government authority), any institution which performs the functions of a central bank, or any multilateral agency;
任何政府(市政府當局除外)、執行中央銀行職能的任何機構，或任何多邊機構；
- (i) except for the purposes of Schedule 5 to SFO, any corporation which is—
(除為施行《證券及期貨條例》附表 5 外)符合以下說明的法團—
- (i) a wholly owned subsidiary of—
屬下述者的全資附屬公司—
- (A) an intermediary, or any other person carrying on the business of the provision of investment services and regulated under the law of any place outside Hong Kong; or
中介人，或經營提供投資服務的業務並受香港以外地方的法律規管的其他人；或

(B) an authorised financial institution, or any bank which is not an authorised financial institution but is regulated under the law of any place outside Hong Kong;
 認可財務機構，或並非認可財務機構但受香港以外地方的法律規管的銀行；

(ii) a holding company which holds all the issued share capital of—
 屬持有下述者的所有已發行股本的控股公司——

(A) an intermediary, or any other person carrying on the business of the provision of investment services and regulated under the law of any place, outside Hong Kong; or
 中介人，或經營提供投資服務的業務並受香港以外地方的法律規管的其他人；或
 (B) an authorised financial institution, or any bank which is not an authorised financial institution but is regulated under the law of any place outside Hong Kong; or
 認可財務機構，或並非認可財務機構但受香港以外地方的法律規管的銀行；或

(iii) any other wholly owned subsidiary of a holding company referred to in subparagraph (ii); or
 屬第(ii)節提述的控股公司的任何其他全資附屬公司；或

(j) any person of a class which is prescribed by rules made under section 397 of SFO for the purposes of this paragraph as within the meaning of this definition for the purposes of the provisions of SFO, or to the extent that it is prescribed by rules so made as within the meaning of this definition for the purposes of any provision of SFO.

屬於為施行本段而藉根據《證券及期貨條例》第 397 條訂立的規則訂明為就《證券及期貨條例》條文屬本定義所指的類別的人，或(如為施行本段而藉如此訂立的規則訂明某類別為就《證券及期貨條例》任何條文屬本定義所指的類別)在該範圍內屬於該類別的人。

Section 3 of the Securities and Futures (Professional Investor) Rules (CAP 571D of the Laws of Hong Kong) (“PI Rules”) provides that for the purposes of paragraph (j) of the definition of “professional investor” in section 1 of Part 1 of Schedule 1 to SFO, the following persons are prescribed as within the meaning of that definition for the purposes of any provision of SFO other than Schedule 5—

《證券及期貨(專業投資者)規則》(香港法例第 571D 章)(「《專業投資者規則》」)第 3 條指，為施行《證券及期貨條例》附表 1 第 1 部第 1 條「專業投資者」的定義的 (j) 段，現就《證券及期貨條例》的任何條文(附表 5 除外)訂明以下人士屬該定義所指的人——

(a) any trust corporation (*note 1*) having been entrusted under one or more trusts of which it acts as a trustee with total assets of not less than HK\$40 million at the relevant date (*note 2*) or as ascertained in accordance with section 8 of PI Rules;
 符合以下說明的任何信託法團 (*註 1*): 擔任一項或多於一項信託的信託人，而在該項或該等信託下獲託付的總資產在有關日期 (*註 2*) 或按照《專業投資者規則》第 8 條獲確定，不少於港幣 40,000,000 元；

(b) any individual having a portfolio (*note 3*) of not less than HK\$8 million at the relevant date (*note 2*) or as ascertained in accordance with section 8 of PI Rules, when any one or more of the following are taken into account—
 符合以下說明的任何個人：在考慮以下任何一項或多於一項時，擁有的投資組合 (*註 3*) 在有關日期 (*註 2*) 或按照《專業投資者規則》第 8 條而獲確定，不少於港幣 8,000,000 元——

- (i) a portfolio on the individual's own account;
 該個人本人的賬戶內的投資組合；
- (ii) a portfolio on a joint account with the individual's associate (*note 4*);
 該個人聯同其有聯繫者 (*註 4*) 於某聯權共有賬戶內的投資組合；
- (iii) the individual's share of a portfolio (*note 3*) on a joint account with one or more persons other than the individual's associate (*note 4*);
 該個人在聯同一名或多於一名其有聯繫者 (*註 4*) 以外的人士於某聯權共有賬戶內的投資組合 (*註 3*) 中所佔部分；
- (iv) a portfolio (*note 3*) of a corporation which, at the relevant date (*note 2*), has as its principal business the holding of investments and is wholly owned by the individual;
 在有關日期的主要業務是持有投資項目並在有關日期 (*註 2*) 由該個人全資擁有的法團的投資組合 (*註 3*);

(c) any corporation having—
 符合以下說明的任何法團 ——

- (i) a portfolio (*note 3*) of not less than HK\$8 million; or
 擁有的投資組合 (*註 3*) 在有關日期 (*註 2*) 或按照《專業投資者規則》第 8 條而獲確定不少於港幣 8,000,000 元；或
- (ii) total assets of not less than HK\$40 million,
 擁有的總資產在有關日期 (*註 2*) 或按照《專業投資者規則》第 8 條而獲確定不少於港幣 40,000,000 元；

at the relevant date (*note 2*) or as ascertained in accordance with section 8 of PI Rules;

(d) any corporation which, at the relevant date (*note 2*), has as its principal business the holding of investments and is wholly owned by any one or more of the following persons—
 在有關日期的主要業務是持有投資項目並在有關日期 (*註 2*) 由以下任何一名或多於一名人士全資擁有的任何法團 ——

- (i) a trust corporation (*note 1*) specified in paragraph (a);
 (a) 段指明的信託法團 (*註 1*);
- (ii) an individual specified in paragraph (b);
 (b) 段指明的個人；

- (iii) a corporation specified in this paragraph or paragraph (c);
本段或 (c) 段指明的法團；
 - (iv) a partnership specified in paragraph (g);
(g) 段指明的合夥；
 - (v) a professional investor within the meaning of paragraph (a), (d), (e), (f), (g) or (h) of the definition of professional investor in section 1 of Part 1 of Schedule 1 to SFO; or
屬《證券及期貨條例》附表 1 第 1 部第 1 條專業投資者的定義的 (a)、(d)、(e)、(f)、(g) 或 (h) 段所指的专业 投資者；或
 - (e) any corporation which, at the relevant date (note 2), wholly owns a corporation referred to in paragraph (c);
在有關日期 (註 2) 全資擁有 (c) 段提述的法團的法團；
 - (f) any partnership specified for the purposes of section 3(d) of PI Rules is a partnership having—
為施行《專業投資者規則》第 3(d) 條而指明的合夥，是符合以下說明的合夥 ——
 - (i) a portfolio (note 3) of not less than HK\$8 million; or
擁有的投資組合 (註 3) 在有關日期 (註 2) 或按照第 8 條而獲確定不少於港幣 8,000,000 元；或
 - (ii) total assets of not less than HK\$40 million,
擁有的總資產在有關日期 (註 2) 或按照《專業投資者規則》第 8 條而獲確定不少於港幣 40,000,000 元。
- at the relevant date (note 2) or as ascertained in accordance with section 8 of PI Rules.

Note 1: "trust corporation" means:-

註 1: 「信託法團」指：

- (a) any trust company registered under Part 8 of the Trustee Ordinance (Cap. 29 of the Laws of Hong Kong); or
根據《受託人條例》(香港法例第 29 章)第 8 部註冊的任何信託公司；或
- (b) any other corporation which—
符合以下說明的其他法團 ——
 - (i) carries on a business which is of a nature similar to that of a trust company referred to in paragraph (a); and
所經營的業務的性質與(a)段提述的信託公司所經營的業務的性質相似；並
 - (ii) is regulated under the law of any place outside Hong Kong.
根據香港以外地方的法律受規管。

Note 2: "relevant date" means:-

註 2: 「有關日期」指：

- (a) in the case of an advertisement, invitation or document described in section 103(3)(k) of SFO, means the date on which the advertisement, invitation or document is issued, or possessed for the purposes of issue;
就《證券及期貨條例》第 103(3)(k) 條所描述的廣告、邀請或文件而言，指發出或為發出而管有該廣告、邀請或文件的日期；
- (b) in the case of a call described in section 174(2)(a) of SFO, means the date on which the call is made;
就《證券及期貨條例》第 174(2)(a) 條所描述的造訪而言，指進行該造訪的日期；
- (c) in the case of an offer described in section 175(5)(d) of SFO, means the date on which the offer is made; or
就《證券及期貨條例》第 175(5)(d) 條所描述的要約而言，指提出該要約的日期；或
- (d) in any other case which, by virtue of any rules made under SFO, requires compliance with an obligation, means the date by or on which the obligation is required to be complied with.
就憑藉根據《證券及期貨條例》訂立的規則而規定須於某日期或之前或須於某日期履行某項責任的其他情況而言，指該日期。

Note 3: "portfolio" means a portfolio comprising any of the following:

註 3: 「投資組合」指由任何下述項目組成的投資組合：

- (a) securities;
證券；
- (b) a certificate of deposit issued by—
由 ——
 - (i) an authorised financial institution; or
認可財務機構發行的存款證；或
 - (ii) a bank which is not an authorised financial institution but is regulated under the law of any place outside Hong Kong;
並非認可財務機構但根據香港以外地方的法律受規管的銀行發行的存款證；
- (c) in relation to an individual, corporation or partnership, money held by a custodian (note 5) for the individual, corporation or partnership.
就任何個人、法團或合夥而言，由保管人替該人、法團或合夥持有的款項。

Note 4: "associate", in relation to an individual, means the spouse or any child of the individual.

註 4: 「有聯繫者」指就任何個人而言，指該人的配偶或任何子女。

Note 5: “custodian” means:-

註 5: 「保管人」指:

- (a) a corporation the principal business of which is to act as a custodian of securities or other property for another person, whether on trust or by contract; or
 主要業務是作為另一人的證券或其他財產的保管人（不論是以信託或合約形式保管）的法團；或
- (b) any of the following persons whose business includes acting as a custodian of securities or other property for another person, whether on trust or by contract—
 業務包括作為另一人的證券或其他財產的保管人（不論是以信託或合約形式保管）的下述人士——
 - (i) an authorised financial institution;
 認可財務機構；
 - (ii) a bank which is not an authorised financial institution but is regulated under the law of any place outside Hong Kong;
 並非認可財務機構但根據香港以外地方的法律受規管的銀行；
 - (iii) a licensed corporation;
 持牌法團；
 - (iv) a person carrying on the business of the provision of investment services and regulated under the law of any place outside Hong Kong.
 經營提供投資服務的業務並根據香港以外地方的法律受規管的人。

Please take note that in this Annexure 1, a reference to an amount expressed in Hong Kong dollars includes its equivalent in any foreign currency.

請注意，在此附件 1 中，凡提述以港元表示的款額，包括其等值的任何外幣。

Annexure 2

附件 2

Provisions that may be waived for Professional Investors**專業投資者可豁免的規定**

Paragraph 15 of the Code of Conduct for Persons Licensed by or Registered with the Securities and Futures Commission (the “Code”) provides that where a client of a licensed corporation is a Professional Investor (as defined under Part 1 of Schedule 1 to the Securities and Futures Ordinance) and **all relevant provisions** under the paragraph 15.3A and 15.B of the Code have been duly complied with and observed by the licensed corporation, such licensed corporation can be exempted from the following requirements of the Code.

證券及期貨事務監察委員會持牌人或註冊人的行為守則（「《操守準則》」）第 15 條規定，如持牌法團的客戶屬專業投資者（按《證券及期貨條例》附表 1 第 1 部定義）而且該持牌法團已妥為遵守及遵從《操守準則》第 15.3A 及 15.3B 段下的**所有相關規定**，則該持牌法團在可獲豁免守則中的以下規定：

Applicable exempt provisions for Institutional Professional investors and Corporate Professional Investors (where the licensed corporation has complied with paragraphs 15.3A and 15.3B of the Code)

機構專業投資者和法團專業投資者（前提是持牌法團已遵從《操守準則》第 15.3A 及 15.3B 段的規定）的適用豁免條款

(a) Information about clients

有關客戶的資料

(i) the need to establish a client's financial situation, investment experience and investment objectives (paragraph 5.1 and paragraphs 2(d) and 2(e) of Schedule 6 to the Code), except where the licensed corporation is providing advice on corporate finance work;

須確立客戶的財務狀況、投資經驗及投資目標（《操守準則》第 5.1 段及附表 6 第 2(d)及 2(e)段），但上述豁免不適用於提供企業融資意見的持牌法團；

(ii) the need to ensure the suitability of a recommendation or solicitation (paragraph 5.2 and paragraph 49 of Schedule 6 to the Code); and

須確保所作出的建議或招攬行為是合適的（《操守準則》第 5.2 段及附表 6 第 49 段）；及

(iii) the need to assess the client's knowledge of derivatives and characterise the client based on his knowledge of derivatives (paragraph 5.1A of the Code);

須評估客戶對衍生工具的認識，並根據客戶對衍生工具的認識將客戶分類（《操守準則》第 5.1A 段）；

(b) Client agreement

客戶協議

(i) the need to enter into a written agreement and the provision of relevant risk disclosure statements (paragraph 6.1, paragraph 20.2(c), paragraph 2 of Schedule 3, paragraph 2 of Schedule 4 and paragraph 1 of Schedule 6 to the Code);

須訂立協議書及提供相關的風險披露聲明（《操守準則》第 6.1 段、第 20.2(c)段、附表 3 第 2 段、附表 4 第 2 段及附表 6 第 1 段）；

(c) Information for clients

為客戶提供資料

(i) the need to disclose transaction related information (paragraph 8.3A of the Code);

須披露與交易相關的資料（《操守準則》第 8.3A 段）；

(d) Discretionary accounts

委託賬戶

(i) the need for a licensed corporation to obtain from the client an authority in a written form prior to effecting transactions for the client without his specific authority (paragraph 7.1(a)(ii) of the Code);

持牌法團在為該客戶進行未經該客戶特定授權的交易之前，須先向該客戶取得書面授權（《操守準則》第 7.1(a)(ii)段）；及

(ii) the need to explain the authority described under paragraph 7.1(a)(ii) of the Code and the need to confirm it on an annual basis (paragraph 7.1(b) of the Code);

須解釋《操守準則》第 7.1(a)(ii)段所述的授權，並須每年確認該項授權一次（《操守準則》第 7.1(b)段）；

(iii) the need for a licensed corporation to disclose benefits receivable for effecting transactions for a client under a discretionary account (paragraph 7.2 of the Code); and

持牌法團須披露因應在委託賬戶下為客戶進行交易而可取得的收益（《操守準則》第 7.2 段）；及

(e) the need to ensure the suitability of a transaction in a complex product, to provide sufficient information about a complex product and to provide warning statements (paragraph 5.5(a) of the Code).

須確保複雜產品交易的合適性，提供有關複雜產品的充分資料及提供警告聲明（《操守準則》第 5.5(a)段）。

Applicable exempt provisions for Institutional Professional investors, Corporate Professional Investors (where the licensed corporation has complied with paragraph 15.3B of the Code) and Individual Professional Investors (where the licensed corporation has complied with paragraph 15.3B of the Code)

機構專業投資者、法團專業投資者（前提是持牌法團已遵從《操守準則》第 15.3B 段的規定）和個人專業投資者（前提是持牌法團已遵從《操守準則》第 15.3B 段的規定）的適用豁免條款

(a) Information for clients

為客戶提供資料

- (i) the need to inform the client about the licensed corporation and the identity and status of its employees and others acting on its behalf (paragraph 8.1 of the Code);
須向客戶提供有關持牌法團和有關其僱員及其他代表其行事的人士的身分和受僱狀況的資料（《操守準則》第 8.1 段）；
- (ii) the need to confirm promptly with the client the essential features of a transaction after effecting a transaction for a client (paragraph 8.2, paragraph 4 of Schedule 3 and paragraph 18 of Schedule 6 to the Code); and
為客戶完成交易後，須儘快向該客戶確認有關該宗交易的重點（《操守準則》第 8.2 段、附表 3 第 4 段及附表 6 第 18 段）；及
- (iii) the need to provide the client with documentation on the Nasdaq-Amex Pilot Program (paragraph 1 of Schedule 3 to the Code).
須向客戶提供關於納斯達克－美國證券交易所試驗計劃的數據文件（《操守準則》附表 3 第 1 段）

